

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE  
Office of City Clerk**

August 24, 2020

The Governing Body of the City of Cheyenne met in regular session on this date beginning at 6:07 p.m. via electronic conference meeting. Attending electronic conference meeting were: COUNCIL PRESIDENT – Dr. Mark Rinne; COUNCIL MEMBERS – Rocky Case, Bryan Cook, Ken Esquibel, Pete Laybourn, Mike Luna, Scott Roybal, Dicky Shanor and Jeff White. Absent: Mayor Marian J. Orr. Also attending: Kris Jones, City Clerk.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda. Mr. Luna moved to approve, seconded by Mr. Roybal. Motion carried. Voting “yes” – all members of the governing body present.

[CA] Minutes from Regular Meeting of the Governing Body on August 10, 2020. Motion (per Consent Agenda) carried.

President Rinne opened a public hearing for a transfer of ownership for a retail liquor license application filed with the City Clerk’s Office for Old Chicago Taproom II LLC d/b/a Old Chicago #74, 1734 Meadowland Drive, Cheyenne, Wyoming (license currently held by Wadsworth Old Chicago Inc. d/b/a Old Chicago Restaurant). Brian Proffitt, attorney representing applicant, provided background on the transfer of ownership request advising the former license operator filed for bankruptcy earlier this year. He explained the applicant purchased assets out of the bankruptcy and the establishment will continue to operate as an Old Chicago. Julia Weaver, restaurant manager, advised she was available for questions. It was noted for the record that Mr. Shanor joined the meeting in progress during public comment at 6:05 p.m. There being no further comments or input and purpose of the hearing having been met, President Rinne closed the hearing and referred the item to the September 8, 2020 Finance Committee meeting.

ORDINANCE – 1<sup>st</sup> READING – Amending various sections of Chapter 15.50, Historic Design Guidelines, of Title 15, Buildings and Construction, of the Code of the City of Cheyenne, Wyoming – referred to Public Services Committee. (Sponsor – Mr. Luna)

RESOLUTION – Authorizing the Mayor and City Clerk to sign a Final Plat for Back 40 Subdivision, 2<sup>nd</sup> Filing, a replat Lot 1, Block 1, Back 40 Subdivision, Cheyenne, Laramie County, Wyoming (located north of West Lincolnway at Grant Avenue). Reporting for Public Services Committee, Mr. Case moved to adopt, seconded by Mr. Cook. Mr. Case moved to amend by revised final plat map dated July 1, 2020, seconded by Mr. Cook. Motion to amend carried. Voting “yes” – all members of the governing body present. Main motion as amended carried. Voting “yes” – all members of the governing body present. (#6081)

RESOLUTION – Authorizing submission of the Nita M. Lowey 21<sup>st</sup> Century Learning Centers grant application to the Wyoming Department of Education on behalf of the Governing Body of the City of Cheyenne to submit continuation application for year three of funding for afterschool programing and necessary support items. Reporting for Finance Committee, Mr. Luna advised the item was reviewed under other items at the August 17, 2020 Finance Committee meeting, therefore provisions of Title 2 of City Code have been met. Mr. Luna moved to adopt, seconded by Mr. Cook. Mr. Shanor abstained from discussion and voting due to work affiliation with the Wyoming Department of Education. Motion carried. Voting “yes” – all members of the governing body present. (#6082)

RESOLUTION – Authorizing submission of the Senior Corps 2021 RSVP Competition grant application to the Corporation for National and Community Service (CNCS) on behalf of the Governing Body of the City of Cheyenne to submit application for funding for Youth Alternatives, Special Friends RSVP Mentoring Program and necessary support items. Mr. Luna advised the item was reviewed under other items at the August 17, 2020 Finance Committee meeting, therefore provisions of Title 2 of City Code have been met. Mr. Luna moved to adopt, seconded by Mr. White. Motion carried. Voting “yes” – all members of the governing body present. (#6083)

[CA] RESOLUTION – Amending Resolution #3597, a Citizen Participation Plan, which establishes objectives, procedures, requirements, and responsibilities for the involvement of lower income individuals, as well as the community at large in the development of a City Comprehensive Five Year Housing and Community Development Plan – referred to Finance Committee. (Sponsor – Mr. Luna)

[CA] RESOLUTION – Accepting a grant in the amount of \$150,000.00 from the Cheyenne Community Recreation District (Recreation Mill) for the replacement of the restroom/concession building at the Cheyenne Junior League Complex – referred to Finance Committee. (Sponsor – Dr. Rinne)

[CA] RESOLUTION – Creating a Special District for the ‘Golf, it’s the Least of our Problems’ Golf Tournament to be held on September 26, 2020, in which the possession of open containers is permitted within the Downtown District Boundaries – referred to Public Services Committee. (Sponsor – Mr. Roybal)

[CA] RESOLUTION – Approving water and sanitary sewer services, by outside user water and sanitary sewer services agreements, for SJT, LLC, for Tracts 21, 22, and 23, Green Subdivision, 3<sup>rd</sup> Filing, situated in the SW¼SW¼ of Section 22, Township 14 North, Range 66 West, of the 6<sup>th</sup> P.M., Laramie County, Wyoming – referred to Finance Committee. (Sponsor – Mr. Luna)

RESOLUTION – Supporting the State of Wyoming Governor’s proposal to have the State Loan and Investment Board consider modifying its rules to adopt an allocation model for distribution of Coronavirus Aid, Relief, and Economic Security Act (CARES ACT) funding to local governments. City Attorney Michael O’Donnell provided information on the resolution explaining Governor Gordon proposed a method to distribute CARES Act funding to local municipalities and counties utilizing a formula which considers population and number of Covid-

19 cases. He explained \$9 million would be allocated for Cheyenne and that Governor Gordon asked for comments on the split between municipalities and counties which the resolution includes. He noted a 50/50 split does not reflect where most citizens in the state reside as 69% percent reside in recognized municipalities. The proposed resolution recommends the split distribution of 1/3 to 2/3 (2/3 to municipalities) which accounts for where most residents reside. It also asks for consideration of a new process for distribution of funds. Mr. O'Donnell provided further information on the distribution process noting the approach of first come first serve wasn't fair due to the application process and the resolution request is for a downstream distribution to cities and counties. Mr. O'Donnell explained the City is willing to sign a hold harmless agreement, whereas if monies aren't spent correctly, the city would be responsible to repay those monies. These specific funds would be deposited into a special revenue fund account (essentially a trust fund and withdrawals can only take place in certain situations). Funding requests would be presented to the Chief Executive Designee of the funds who would determine if the request is appropriate, noting funds must be spent by December 31, 2020. It was noted the current process is cumbersome, slow, difficult and the proposed process would be efficient and would allow money distribution to be in a more rapid manner. The City would be required to keep appropriate records which are subject to audit and would also be monitored by the City Treasurer. Mr. O'Donnell advised the suggested path is for the City to adopt a statement of support that is included in the resolution. Upon inquiry, Mr. O'Donnell explained he has been working on the CARES Act funding application process for the City and due to the complexity of the current process and he drafted the resolution to provide efficiency and allow for rapid distribution of funds. He further advised the proposed idea was generally discussed with other communities and they seemed supportive and noted if adopted, he would reach out to through WAM to other communities. Upon further inquiry, Mr. O'Donnell provided information involving the current process authorizing the City to submit grant applications in amounts not exceeding \$5 million dollars, which was adopted by resolution in June of 2020. He noted if a grant application exceeded that threshold, it would need to come before the governing body for approval. It was confirmed that unless the resolution was postponed, the resolution is on final consideration. Comments were provided related to the limited timing involving the opportunity to apply for funding and support was voiced for the resolution under suspension of the rules. Dr. Rinne advised normally the resolution would have been referred to the Finance Committee but instead the governing body has been asked to expedite the adoption process by suspension of rules to adopt at this meeting. Mr. O'Donnell emphasized the tight time constraint and anticipated a SLIB meeting this Thursday, August 27<sup>th</sup>, to consider the allocation model. Upon inquiry, Mr. O'Donnell explained a hold harmless agreement would provide protection to the State of Wyoming so that they aren't exposed to findings that funds weren't spent correctly and would apply to all local governments. He noted he is confident Governor Gordon would support the protection. Gunnar Malm, Laramie County Commissioner, advised he was unaware of the resolution and would like additional information and discussion between community partners prior to considering whether or not to support the effort. Amber Ash, DDA Executive Director, questioned how this will impact earmarked allocation for outside agencies in the City's budget. Mr. O'Donnell confirmed the funding allocations for outside agencies such as the DDA were previously allocated. He noted the City has gone before SLIB and have already been awarded grants. Ms. Ash requested consideration of funding allocation by amendment in the City's budget ordinance. Dr. Rinne explained if the resolution is referred to the Finance Committee, there would be a 3 week delay as next week is a 5<sup>th</sup> week with no regular meetings of

the governing body. He reported there is the option to suspend rules which requires a motion and second and a  $\frac{3}{4}$  affirmative vote of qualified members of the governing body. Upon inquiry, Kris Jones, City Clerk, advised in order to schedule a special meeting of the governing body, a press release would need to be issued 24 hours prior to the meeting to comply with public notification requirements. Ms. Jones confirmed the resolution could be postponed to a special meeting of the governing body and noted a special Finance Committee meeting could also be scheduled prior to the special meeting of the governing body to consider a recommendation on the agenda item. Discussion continued involving proposed accountable method of a 50/50 split that would benefit the Laramie County Commissioners and government and questions of what it would do for the City and municipalities, support of suspending rules and the City Attorney's expertise and significant amount of grant funding. Mr. Laybourn moved to suspend rules. Motion died due to lack of second. Mr. Case moved to postpone to August 26, 2020 at 6:00 p.m. to a special meeting of the governing body, seconded by Mr. Roybal. Mr. Shanor abstained from voting due to a work affiliation. Support was expressed for scheduling a special meeting to allow for dialogue with the Laramie County Commissioners, and it was noted that if the resolution is adopted, it would be ready in time for the August 27<sup>th</sup> SLIB meeting. Motion to postpone carried. Voting "yes" – all members of the governing body present with the exception of Laybourn voting no.

Preliminary Planned Unit Development (PUD) for The Enclave at Northgate, for Lot 8 and portions of Lots 6, 7, 9, 10, 11, and 12; Block 19; North Cheyenne, 2<sup>nd</sup> Filing; Cheyenne; Laramie County; Wyoming (located west of and adjacent to Yellowstone Road, north of North Gate Avenue). Mr. Case moved to acknowledge the Planning Commission's recommendation to approve with conditions #1-4, seconded by Mr. White. Motion carried. Voting "yes" – all members of the governing body present.

Preliminary Plat for The Enclave at Northgate, for Lot 8 and portions of Lots 6, 7, 9, 10, 11, and 12; Block 19; North Cheyenne, 2<sup>nd</sup> Filing; Cheyenne; Laramie County; Wyoming (located west of and adjacent to Yellowstone Road, north of North Gate Avenue). Mr. Case moved to acknowledge the Planning Commissions recommendation to approve with conditions #1-6, seconded by Mr. Cook. Motion carried. Voting "yes" – all members of the governing body present.

[CA] Memorandum of Understanding between the City of Cheyenne, Transit Division, and Laramie County to provide public transportation services to Laramie County Community College and for an area of Laramie County immediately adjacent to the City (Revenue to City). Motion (per Consent Agenda) carried (revenue in the amount of \$83,816.00). (#7213)

[CA] Agreement between the City of Cheyenne and the Cheyenne Animal Shelter/Services for Animal Control and Animal Shelter Services (General Fund). Motion (per Consent Agenda) carried (amount not to exceed \$563,500.00). (#7214)

[CA] Contract between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center (CRMC) and the Office of Youth Alternatives for Suicidal Ideation Assessment Services in the amount of \$36,791.00 (Cheyenne Regional Medical Center (CRMC) Grant). Motion (per Consent Agenda) carried. (#7215)

[CA] Grant Agreement between Memorial Hospital of Laramie County d/b/a Cheyenne Regional Medical Center and the City of Cheyenne Police Department for Law Enforcement Assisted Diversion (LEAD) Program (Revenue to City). Motion (per Consent Agenda) carried (revenue in the amount of \$244,624.00). (#7216)

[CA] Grant Agreement from the U.S. Department of Transportation, Federal Aviation Administration, for the Reconstruction of Runway 09/27-Phase 2 at the Cheyenne Regional Airport/Jerry Olson Field (Revenue to City). Motion (per Consent Agenda) carried. (#7217)

[CA] Agreement between the City of Cheyenne, Office of Cheyenne Youth Alternatives, and Laramie County, Wyoming for Juvenile Probation Services (Revenue to City). Motion (per Consent Agenda) carried (in the amount of \$60,000). (#7218)

[CA] Contract for on-call crisis center services between the Laramie County Community Juvenile Services Joint Powers Board and the Office of Youth Alternatives in the amount of \$69,000.00 (Revenue to City). Motion (per Consent Agenda) carried (in the amount of \$69,000.00). (#7219)

Grant agreement from the U.S. Department of Transportation, Federal Aviation Administration, for the reconstruction of Runway 09/27 (reimbursable agreement for precision approach path indicator and localizer design) at the Cheyenne Regional Airport/Jerry Olson Field. Nathan Banton, Cheyenne Regional Airport General Manager, provided information on the grant and project and voiced support for the project. Mr. Luna advised the item was reviewed under other business at the August 17, 2020 Finance Committee meeting, therefore, provisions of Title 2 of City Code have been met. Mr. Luna moved to approve in an amount \$54,189.00, seconded by Mr. Case. Motion carried. Voting “yes” – all members of the governing body present. [Clerk’s note: Mr. White was present during discussion but absent during vote of this item and returned prior to discussion of the next agenda item.] (#7220)

[CA] Volleyball Officiating Agreement between the City of Cheyenne and the Officials for Fun Club for the Community Recreation and Events 2020-2021 season for youth and adult volleyball leagues (Recreation Programs Fund) – referred to Finance Committee.

[CA] Notice of renewal of United States Department of Agriculture Lease Number 57-82HW-1-0171/City Contract No. 150, between the United States of America, acting through the Agricultural Research Service, and the City of Cheyenne for the lease of 1,998 acres of land known as the High Plains Grasslands Research Station, for the period of October 1, 2019 through September 30, 2020 (Revenue to City) – referred to Finance Committee.

[CA] Notice of renewal of United States Department of Agriculture Lease Number 57-82HW-1-0171/City Contract No. 150, between the United States of America, acting through the Agricultural Research Service, and the City of Cheyenne for the lease of 1,998 acres of land known as the High Plains Grasslands Research Station, for the period of October 1, 2020 through September 30, 2021 (Revenue to City) – referred to Finance Committee.

[CA] Contract Modification #2 to Contract #6933 between the City of Cheyenne and Vortex International Aquatic Play Solutions to upgrade ADA Visual Access Distinction and Construction (General Fund Reserves) – referred to Finance Committee.

[CA] Contract Modification #1 to Contract #6981 between the City of Cheyenne and Plan One/Architects to extend the completion date for roof replacements at Fleet Maintenance, Parks Maintenance and Cheyenne Aquatics Center – referred to Finance Committee.

[CA] Consideration of Bid #S-16-20 for a contract between the City of Cheyenne and Containment Systems LLC, for the repair and expansion of Landfill Permanent Litter Fence Project (Solid Waste Fund). Motion (per Consent Agenda) carried (accepted bid from Containment Systems LLC, Birmingham, AL, in an amount not to exceed \$198,000.00). (#7221)

[CA] Consideration to purchase between the City of Cheyenne, and Alamo Industrial, Seguin, TX, for the purchase of an Alamo Versa Pro Three Gang Flail Mower (2015-2018 1% Sales Tax) – referred to Finance Committee.

[CA] Request to expand retail liquor license package store dimensions for Avanti, Inc. d/b/a Dell Range Liquor, 3806 Dell Range Blvd (postponed from August 10, 2020). Motion (per Consent Agenda) carried.

[CA] Social club liquor license application filed with the City Clerk's Office for Alternative Arts Project Inc. d/b/a The Lincoln Theater, 1615 Central Ave., Cheyenne, Wyoming. Motion (per Consent Agenda) carried.

No comments were made on the Voucher Report as presented.

No comments were made on the Revenue Report as presented.

Appointments of Jay Sullivan and Dr. Tracey Kinney to the Laramie County Juvenile Services Joint Powers Board. Mr. Luna moved to approve, seconded by Mr. Roybal. Motion carried. Voting "yes" – all members of the governing body present.

Announcement was made of Public Hearing to be held September 14, 2020 at 6:00 p.m. via electronic conference meeting, for a transfer of ownership for a resort liquor license application filed with the City Clerk's Office for Omsai Hospitality, LLC d/b/a Red Lion and Conference Center of Cheyenne, 204 W. Fox Farm Rd., Cheyenne, Wyoming (license currently held by Driftwood Special Servicing, LLC d/b/a Red Lion Hotel Cheyenne & Conference Center).

Announcement was made that due to the Labor Day holiday on Monday, September 7, 2020, the regularly scheduled City Council Committee meetings will instead be held as follows: Finance Committee will meet Tuesday, September 8, 2020 at 11:00 a.m. via electronic conference meeting and Public Services Committee will meet Wednesday, September 9, 2020 at Noon via electronic conference meeting.

Under other business:

Mr. Luna apologized for inadvertently not removing his hat during the Pledge of Allegiance during a recent City Council meeting.

There being no further business to come before the governing body, the meeting was officially adjourned at 6:55 p.m.

Submitted by,

Kristina F. Jones, City Clerk

This notice is available in alternative, accessible formats upon request.

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